

Tentative Rulings and Resolution Review Hearings

July 6, 2026

Department 63

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

*****IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.*****

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 at least 10 minutes before your hearing start time.

The access code is 2482 635 4223. There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

1. Please mute your telephone until your case is called.
2. Please do not place the call on hold.
3. Minimize all background noise during your call.
4. Please identify yourself, each time, prior to addressing the court.
5. Disconnect when the court has completed your case or cases.
6. The court prohibits the recording of these proceedings.

8:30 a.m. – Law & Motion

ADK PROPERTIES LLC, ET AL. VS. FPI MANAGEMENT, INC., ET AL.

CASE NUMBER: 26CV-0210272

Tentative Ruling on Demurrer and Motion to Strike: Due to the voluminous calendar, there was insufficient time to review this matter and prepare detailed tentative rulings. In the interest of judicial economy and based on the Court's inherent authority to control its own calendar, hearings on both motions are continued to **Monday, July 13, 2026 at 8:30 a.m. in Department 63**. Should a July 13, 2026 hearing date pose an issue for either party, the parties are ordered to meet and confer regarding a new hearing date and appear to request a new date. Absent the need to select a different hearing date, **no appearance is necessary on today's calendar.**

BAKER VS. SMITH, ET AL.

CASE NUMBER: 26CV-0209620

Proposed Tentative on Motion for Leave to File First Amended Complaint: Plaintiff Robert Wayne Baker seeks leave to file a First Amended Complaint. The Proof of Service indicates service on Defendants' counsel by mail on June 16, 2026. This is not timely as all moving papers must be filed and served no less than sixteen

court days prior to the hearing and five calendar days are added for mail within the State of California. CCP § 1005(b). Defendants filed an Opposition on June 29, 2026, which is untimely. However, as service was late, the late Opposition is excused and will be considered.

CCP § 473(a)(1) permits any pleading to be amended in further of justice and on any terms as may be proper, after notice to the adverse party. The Court's discretion in this regard will usually be exercised liberally to permit amendment. *Nestle v. Santa Monica* (1972) 6 Cal. 3d 920, 939. "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." *Morgan v. Sup.Ct.* (1959) 172 Cal. App. 2d 527, 530. In general the Court should not concern itself with the validity of the proposed amendment in the motion for leave to amend. *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal. App. 3d 1045, 1048. The validity of the amendment can be challenged by a subsequent demurrer, motion for judgment on the pleadings, or other appropriate proceeding. *Id.*

Delay alone is not sufficient grounds to deny a motion to amend, absent prejudice to the opposing party. *Atkinson v. Elk Corp.* (2003) 109 Cal. App. 4th 739, 761. Prejudice exists, however, where the amendment would result in a delay of trial, loss of evidence, added preparation costs, additional discovery, or other costs. The weight of the prejudices is increased where there is no explanation for the delay in amending. *See, e.g., Magpali v. Farmers Group, Inc.* (1996) 48 Cal. App. 4th 471, 486-488; *P & D Consultants, Inc. v. City of Carlsbad* (2010) 190 Cal. App. 4th 1332, 1345; *Fisher v. Larsen* (1982) 138 Cal. App. 3d 627, 649. Defendants presented no evidence of prejudice.

In addition to the merits of a motion, the Court must consider whether proper procedure was followed. CRC 3.1324(a)(2) and (3) require the moving party to state what allegations in the previous pleading are to be added or deleted and state where, by page, paragraph, and line number the deletions and additional allegations. A supporting declaration is required that contains all the information set forth in CRC 3.1324(b). Plaintiff did not follow CRC 3.1324 as the changes are not specified in sufficient detail and the declaration does not fully address each factor set forth in CRC 3.1324(b).

The motion is **DENIED** without prejudice for not complying with CRC 3.1324. Defendants' request for sanctions is **DENIED**. Plaintiff provided a proposed Order that will be modified to reflect the Court's ruling. Should Plaintiff elect to correct the defects and file for leave again complying with CRC 3.1324, Plaintiff is reminded to timely serve the motion per CCP § 1005(b) and to file a proof of service.

FASSBINDER, ET AL. VS. PG&E CORPORATION, ET AL.

CASE NUMBER: CVCV21-0198186

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on May 20, 2026 to Plaintiffs' counsel and Defendants' counsel for failure to provide the Court with status of the JCCP action. The matter was on calendar on May 11, 2026 and the tentative ruling required an appearance because neither party had filed a status statement. Neither party appeared, therefore, no status was provided. Plaintiffs have since filed a status statement informing the Court that a request for dismissal with prejudice will be filed shortly in the JCCP and counsel's intent is to do the same in this court. The Order to Show Cause is **DISCHARGED**. The matter is on calendar today at 9:00 a.m. for status.

HALL VS. LICKLITER, ET AL.

CASE NUMBER: 26CV-0210067

Tentative Ruling on Motion to Quash Service of Summons: Defendant Jacob Lickliter moves to quash service of summons. Plaintiff Lisa Hall opposes the motion.